

6.	25PR0191	ESTATE OF BRANDON DAVID BOYCE
PETITION HEARING / STATUS OF ADMINISTRATION		

Before the Court are two matters: 1) Status of Administration; and 2) Petition for Termination of Further Proceedings and for Discharge of Personal Representative.

STATUS OF ADMINISTRATION

Letters Testamentary were issued on September 15, 2025.

There is no Inventory and Appraisal on file with the court. Probate Code §8800 requires that the personal representative file an Inventory and Appraisal with the Court within 4 months from the issuance of letters.

There is no Petition for Final Distribution on file with the court.

PETITION HEARING

Petitioner, Mary Anjuli Boyce ("Petitioner"), declares an Inventory and Appraisal has not been filed because Petitioner could not locate any assets that were subject to estate administration, as majority of Decedent's assets were held in the Boyce Family Trust. At the time the probate proceeding was initiated, Petitioner believed probate administration might be necessary to transfer assets that had not been included in the Trust; however, the minor asset's value which had not been transferred did not exceed the amount of \$208,850.00.

Probate Code § 12251 provides:

(a) At any time after appointment of a personal representative and whether or not letters have been issued, if it appears there is no property of any kind belonging to the estate and subject to administration, the personal representative may petition for the termination of further proceedings and for discharge of the personal representative. The petition shall state the facts required by this subdivision.

(b) Notice of the hearing on the petition shall be given as provided in Section 1220 to all interested persons.

(c) If it appears to the satisfaction of the court on the hearing that the facts stated in the petition are true, the court shall make an order terminating the proceeding and discharging the personal representative.

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September 14, 2026
Dept. 9
Probate Tentative Rulings

Petitioner confirms that she is the sole beneficiary of Decedent's will in her capacity as the Trustee of the Boyce Family Trust and therefore notice is not required. Petitioner requests the Court terminate the proceedings and discharge her as Executor.

TENTATIVE RULING #6:

ABSENT OBJECTION THE PETITION IS GRANTED AS REQUESTED. ANY PERSON WHO HAS AN OBJECTION MAY MAKE IT ANY TIME, EVEN ORALLY AT THE HEARING (PROBATE CODE § 1043).

IF A PARTY OR PARTIES WISH TO APPEAR REMOTELY, INSTRUCTIONS FOR REMOTE APPEARANCES CAN BE FOUND ON THE COURT'S WEBSITE.